



Atlas Copco



Pino Meroni Egypt

Mohamed Atef Ahmed

Quote no 7026591A1
26/07/2026

Contact: Mohamed Atef Ahmed
Company: Pino Meroni Egypt
Address: October
Phone: +20 1063652237
Email:

Dear sir,

Thank you for your recent enquiry. Further to our discussions, please find enclosed our quotation as per your requirements.

We trust the enclosed information is of interest, and look forward to hearing back with your comments. If you require any further information on this or any of our products and services, please do not hesitate to contact me.

Mohamed Elnaggar
Sales Engineer
Mobile: +20 101 441 1827
Mohamed.Elnaggar@atlascope.com

Atlas Copco Equipment Egypt S.A.E.

P.O.Box:520 El Obour market
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Tel : +202 46140800
Fax : +202 4481 4341
24hrs.Service Hotline:
Cairo: 0128075 5533

Reg. no.:
10411
Nasr city

Home of industrial ideas

From satellites to underwater, our products are used in most applications under the sun - We add value together by turning industrial ideas into innovations that make lives better for people everywhere.

Since 1950, we have been serving the Egyptian industries indirectly in a wide range of markets, including general engineering, manufacturing and process industries, construction, automotive, electronics, oil and gas, with innovative, reliable & energy efficient solutions.



In 1999, Atlas Copco Egypt was established with main headquartered in Cairo and a branch office in Alexandria and later established Atlas Copco Levant as an off-shore Company office in Lebanon, for handling direct/in-direct sales and service operations in Egypt with 135+ of dedicated & well-trained sales & service employees who are fully committed to best serve & keep our customer over-satisfied with our products and services.

We provide innovative air and gas compressors, dryers and filters, Spare parts & service, vacuum pumps, portable compressors, light towers generators, construction equipment & tools, pneumatic and industrial electric power tools and assembly systems.



The business is backed up by a nationwide sales & maintenance distribution network in Egypt, Jordan, Lebanon & Sudan. Our products help customers to achieve sustainable productivity in a wide range of markets to ensure that products are running at maximum efficiency and minimum downtime at our customers' sites. www.atlascopco.com.eg

At Atlas Copco, we know that great ideas drive development and we have been turning industrial ideas into business-critical benefits since 1873. By listening to our customers and knowing their needs, we deliver value and innovate with the future in mind.

Atlas Copco is a global and industrial company with a highly innovative spirit. Our customers are active in a wide range of industries in more than 180 countries. We have our own operations in more than 70 countries and close to 37 000 employees. In 2018, revenues reached 95 billion Swedish kronor/ 9 billion Euro with full range of products and services focused on productivity, energy efficiency, safety and ergonomics. www.atlascopco.com

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Price Summary

Line	Description	Qty	Unit Value (USD)	Total Price (USD)
20	GA75 P A 10.5 MEAK 400 50 - Brand: Atlas Copco - Oil Injected Rotary Screw Air Compressor - Installed Main Motor Rated Power: 75 KW - Designed for continuous operation in harsh environments. - Maintenance-free drive system, as totally enclosed and protected against dirt and dust. - Max. eff. Working pressure: 10 bar (g). - Free Air Delivery at 8 bar: 211.98 l/s (12.72 m3/min). - Eliminates possibility of thermal shocks - Easy monitoring and maintenance because of the Elektronikon Touch controller. - For connection to 400V, 50Hz, 3 Phase - Country of Origin: China - Delivery time: if booked now, will be available in 6 to 8 weeks (subject to prior booking or sale)	1	18,716.00	18,716.00
Grand Total Budgetary Price (excluding 14% VAT) USD				18,716.00

Note: All payments and final invoices are in EGP.

Exchange rate is calculated on the day of invoice according to the CBE

Alternative Option:

Line	Description	Qty	Unit Value (USD)	Total Price (USD)
20	GA75P A 10 MEBB 400 50 - Brand: Atlas Copco - Oil Injected Rotary Screw Air Compressor - Installed Main Motor Rated Power: 75 KW equals IE4 efficiency - Compact design that saves valuable floor and work space - Max. eff. Working pressure: 10 bar (g) - Free Air Delivery at nominal pressure: 203 l/s (12.2 m3/min) - Having electronic water drain - Easy monitoring and maintenance because of the Elektronikon Touch controller - For connection to 400V, 50Hz, 3 Phase - Country of Origin: Belgium (European) - Delivery time: Currently STOCK (subject to prior booking or sale)	1	33,072.00	33,072.00
Grand Total Budgetary Price (excluding 14% VAT) USD				33,072.00

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Payment & delivery conditions

Quote valid to:	25/08/2026
Commissioning:	Including inside Egypt only
Installation:	Not Including
Warranty:	See Terms and conditions
Payment terms:	50% down payment, 50% upon delivery
Incoterms & location:	EXW - El Obour City from our store

Delivery Terms

Equipment will be delivered in our standard packaging unless otherwise stated (Off loading and positioning by others). Optional items may impact delivery. Delivery time will be confirmed on acceptance of your order/final instructions to proceed.

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Additional Commercial Conditions

- *Warranty**
- Atlas Copco Prime equipment warranted against defective workmanship and faulty material for 12 months after commissioning & start-up or 18 months from dispatch whichever comes first.
 - Warranty valid only if equipment commissioned by authorized Atlas Copco agent, serviced in accordance with our requirements using Atlas Copco genuine parts, and carried out by an Atlas Copco approved engineer
 - Atlas Copco genuine spare parts are warranted against defective and faulty material for 3 months from dispatch conditioned that parts are installed by Atlas Copco certified team
- *Equipment drawings and Documentations**
- Our price only includes for the following standard Atlas Copco documentation as applicable to the equipment and according to Atlas Copco Standard format.
 - One copy of (Unit dimension Drawing, Schematic Wiring Diagram, Standard Installation Proposal, Instructions & Spare parts Manuals, Declaration of conformity)
 - *Above supplied in electronic format and/or delivered with the equipment.
- *Exclusions**
- Any interconnecting compressed air piping between the various items.
 - All devices / field instruments external to the compressor / dryer packages.
 - Any civil work.
 - Erection, assembly and installation of the equipment on the destination plant.
 - Re-assembly of loose shipped equipment.
 - Foundation bolts.
 - Power feedings.
 - Power, control & monitoring, LAN cables external to the packages.
 - Fittings, valves etc. external to the packages.
 - Tools, consumable materials, lifting and construction equipment for erection.
 - And everything that is not confirmed explicitly in the offer.
- *Validity**
- Our quotation prices remain open for acceptance for 30 days from the date of this offer.
- *Other terms and conditions**
- All deliveries of Atlas Copco products made in accordance with General Conditions for the supply of Mechanical, Electrical and Associated Electronic Products published by ORGALIME S2012, March 2012.
 - Unit performance measured according to ISO 1217, Annex C, latest edition.
 - Mean noise level measured according to ISO 2151/Pneuro/Cagi PN8NTC2 test code; tolerance 2 dB(A).
 - In the event that Atlas Copco doesn't obtain a positive response from the customer within 10 working days of notifications of readiness the supplies for delivery and start the procedures of receiving and paying the agreed receivables, the purchase order will be cancelled and the delay penalty will be calculated based on the actual expenses incurred by the company and the other financial burdens resulted by this receiving delay with considering the percentage of the completion of the purchase order implementation which in all cases will not exceed the total value of the purchase order.
 - In the event that the customer cancelled his order upon his discretion or because he failed to fulfil his obligations, he will be fined an amount equivalent to the volume of the burdens incurred by Atlas Copco to implement the purchase order in addition to the actual manufacturing cost that will be evaluated by Atlas Copco factory with considering of the supplies manufacturing phase at the moment of activating the cancellation order particularly with the special

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specification equipment which made especially according to the customer order, in all cases the fines will not exceed the order total value, while Atlas Copco reserves the right to claim compensation due to other damages could be occurred by this cancellation action

***Force majeure**

- This our official offer is correct and true we are committed with all mentioned conditions, except , For purposes of delivery time Article, "force majeure" shall mean any failure to satisfy the agreement which cannot be attributed to Atlas Copco or the buyer, because it is not due to the fault of Atlas Copco or the buyer, nor the responsibility of Atlas Copco or the buyer by virtue of the law, legal act or generally accepted practices.
- In the event of a temporary situation of force majeure, including a situation in which a product ordered by the buyer is temporarily undeliverable, Atlas Copco shall be entitled to extend the envisaged delivery period by the time during which the temporary situation continues.
- In the event of a permanent situation of force majeure, including a situation which is beyond Atlas Copco's or the buyer's control, or which they cannot reasonably control, and which makes it impossible to deliver or furnish products or to perform work and /or services, Atlas Copco or the buyer shall be entitled to terminate the agreement extra judicially. In a force majeure situation, the buyer may not claim any compensation from Atlas Copco for the damage suffered by it.

Foreign currency exchange

- Whereas the activity of Atlas Copco Equipment Egypt depends on importing equipment and spare parts from Atlas Copco factories around the world, and the pricing policy within the Arab Republic of Egypt is determined by reference to the exchange rate of the Egyptian pound against foreign currencies, so in the event of governmental decisions or instructions from the Central Bank By floating the Egyptian pound against foreign currencies or issuing decisions to impose compulsory pricing on certain goods or services, which leads to a difference in the exchange rate of the Egyptian pound against other currencies, provided that this change exceeds 10% +/- foreign at the time of contracting, Atlas Copco has the right to review the agreed prices in the contracts preceding those decisions and those that are being implemented, in order to correct the imbalance that occurred in the price in Egyptian pounds to make it compatible with The price is in foreign currency at the date of agreement.
- Whereas the activity of Atlas Copco Equipment Egypt depends on importing equipment and spare parts from Atlas Copco factories around the world, and the pricing policy within the Arab Republic of Egypt is determined by reference to the exchange rate of the Egyptian pound against foreign currencies, so in the event of governmental decisions or instructions from the Central Bank By floating the Egyptian pound against foreign currencies or issuing decisions to impose compulsory pricing on certain goods or services, which leads to a difference in the exchange rate of the Egyptian pound against other currencies, provided that this change exceeds 10% +/- foreign at the time of contracting, Atlas Copco has the right to review the agreed prices in the contracts preceding those decisions and those that are being implemented, in order to correct the imbalance that occurred in the price in Egyptian pounds to make it compatible with The price is in foreign currency at the date of agreement.
- The customer is notified of the new prices after the amendment, and in the event that the new price is not accepted by the customer, the validity of the contract is considered expired with the expiry date of the basic agreement without renewal based on the customer's desire without any responsibility on Atlas Copco.

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- The customer acknowledges that he read Atlas Copco general policy before signing the agreement or issue the purchase order, and acknowledges that he accepted it and it is considered binding on him.

**Trade compliance
clause**

- Any quotation is legally binding upon us only after you have received a written acceptance from us of any order from you based on that quotation and we can at any point in time withdraw our quotation.
- By placing the order you certify that the order will not be used for any purpose connected with chemical, biological or nuclear weapons, or missiles capable of delivering such weapons, nor any other purpose prohibited by applicable law.
- Furthermore you certify that the items ordered, or any intellectual property rights, know-how or trade secrets related to them, will not be sold or transferred to restricted regions (Iran, North Korea, Syria, Russia, Belarus, Crimea, or contested regions of Ukraine or Russia), nor for any purpose connected with chemical, biological or nuclear weapons, missiles capable of delivering such weapons, nor to any other purpose prohibited by applicable law.
- You will immediately notify us in writing of any breach of this statement.
- We shall not be obligated to fulfill a binding order or agreement or any part thereof or related to it, nor liable for its non-fulfillment, if such fulfillment is prevented by any impediments arising out of applicable local and/or international foreign trade and customs requirements or any embargos or other sanctions.
- We shall have the right to terminate a binding order or agreement or any part thereof or related to it, with immediate effect and without prior notice, if fulfillment is prevented by any impediments arising out of applicable local or international foreign trade and customs requirements or any embargos or other sanctions.
- The customer shall indemnify us for any direct or indirect damages arising in consequence of any breach of this statement"

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Aftersales Support

Air Compressor Service in Egypt

Ready to serve you over the clock (24/7)

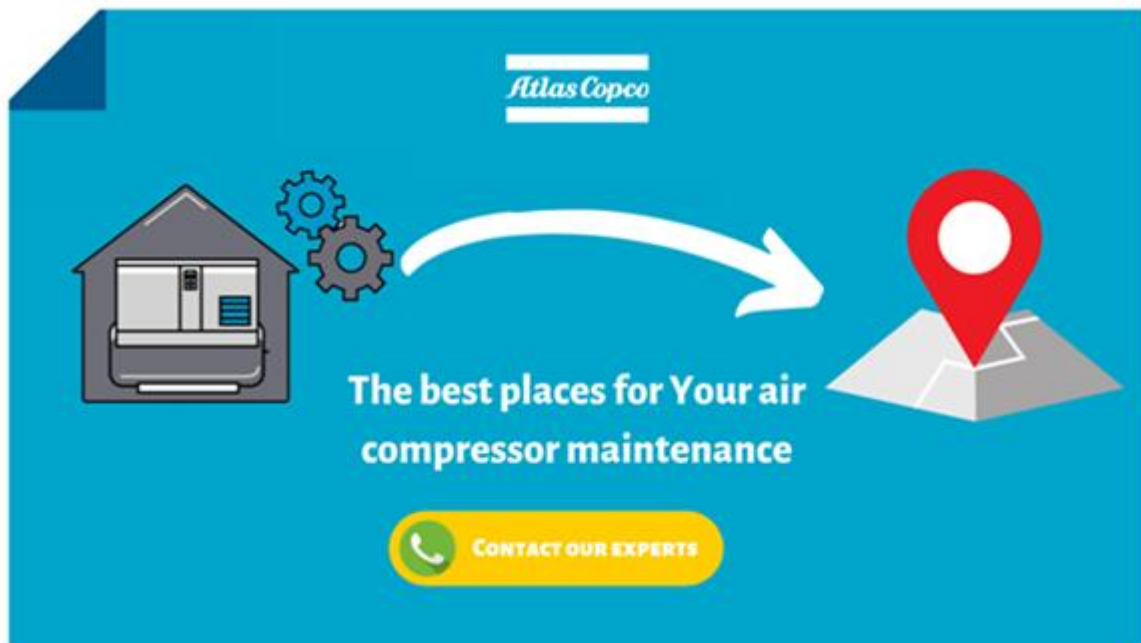
Properly caring for your products helps you lower your operating costs and minimizes the risk for unplanned breakdowns or production stops. Atlas Copco offers energy efficiency checks, service, repairs, spare parts and maintenance plans for all our products covering all territories in Egypt. Entrust your servicing to our expert professionals and ensure your business continues to run efficiently.



We provide required support to our customers and ensure that the products are working at maximum efficiency. To accomplish this, we offer standard different levels of service plan or based on customer request as tailor made to meet your needs. This is our way to showing our commitment to sustainable productivity. All our spare parts are produced on the same production line and to the same tolerances as the original parts. Only genuine Atlas Copco spare parts can guarantee the highest performance of your Atlas Copco equipment.

Atlas Copco Services in EGY region (Lebanon, N. Sudan & Jordan) carried by our distributors

Atlas Copco customers are supported by a nationwide sales, distribution, and service network, in Egypt, Jordan, Lebanon and Sudan to ensure that products are running at maximum efficiency and minimum downtime at our customers' sites.



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Certifications



Current issue date: 1 January 2023
Expiry date: 31 December 2025
Certificate identity number: 10493063

Original approval(s):
ISO 9001 - 9 December 2002
ISO 45001 - 2 September 2020
ISO 14001 - 1 January 2005

Certificate of Approval

This is to certify that the Management System of:

EGY - Atlas Copco Equipment S.A.E. CT Division

1st industrial zone, Part 7, Block No 13024, El Obour, Cairo, 11828, Egypt

has been approved by LRQA to the following standards:

ISO 9001:2015, ISO 45001:2018, ISO 14001:2015

Approval number(s): ISO 9001 – 0019526-293, ISO 45001 – 0019525-545, ISO 14001 – 0019527-606

This certificate forms part of the approval identified by approval number: 0019526/ 0019525/ 0019527

The scope of this approval is applicable to:

ISO 9001:2015, ISO 45001:2018, ISO 14001:2015

Operations (marketing and sales), commissioning, after-sales services, maintenance and repairing of Atlas Copco equipment belonging to CT (IAT, OFA, CTS) & CR (APW, CRS).



Paul Graaf

Area Operations Manager, Europe

Issued by: LRQA Limited



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Issued by: LRQA Limited, 1 Trinity Park, Bickenhill Lane, Birmingham B37 7ES, United Kingdom

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Terms and Conditions.

Article 1 Applicability

1.1 These Terms and Conditions shall apply to all offers and purchase agreements for goods and/or services (to be referred to as "items") in which Atlas Copco Equipment Egypt (hereinafter to be referred to as "Atlas Copco") acts as a provider or seller.

1.2 Deviations from these Terms and Conditions may only be agreed to in writing.

Article 2 Formation of purchase agreements

2.1 Offers

An offer by Atlas Copco shall be without obligation, unless otherwise expressly apparent from the offer.

2.2 Agreements

If the agreement is entered into in writing, it shall be formed on the data the contract is signed by Atlas Copco or the date the written confirmation of the instruction is sent by Atlas Copco.

2.3 Acceptance by Atlas Copco may occur through any means of communication. This shall likewise apply if the order or instruction has been placed by buyer electronically. The order placed by buyer may also be accepted by sending the items to the buyer.

2.4 By placing any follow-up order with Atlas Copco, the buyer shall accept the applicability of these General Term and Conditions.

Article 3 Prices

3.1 The prices shall be in EGP, exclusive VAT. If delivery in another manner besides "Ex Warehouse" has been agreed on, the additional costs, including transport and insurance costs, shall be for the buyer's account.

3.2 If, after the date of agreement is formed, one or more cost factors increase – even if this occurs as a result of foreseeable circumstances, Atlas Copco shall be entitled to increase the agreed price accordingly.

3.3 Insofar as seaworthy packaging is not involved, packaging shall be included in the price.

Seaworthy packaging shall be charged separately. Packaging shall never be taken back.

Article 4 Delivery / Delivery period

4.1 For the interpretation of the delivery terms, the "most recent Incoterms" issued by the International Chamber of Commerce shall apply.

4.2 The delivery period shall commence on whichever of the following dates is the latest:

a. the date the agreement is formed.

b. the date Atlas Copco receives the documents, information, permits and so forth necessary to carry out the instruction.

c. the date of formalities necessary for commencing the work are fulfilled.

d. the date Atlas Copco receives what must be paid in advance under the agreement before the work commences. If delivery date or week has been agreed on, the period between the date the agreement is formed and the delivery date or week shall constitute the delivery period.

4.3 The delivery period shall be based on the work conditions applicable at the time the agreement is concluded and the delivery on time of materials ordered by Atlas Copco to perform the work. If, through no fault of Atlas Copco, a delay occurs because of a change in the aforementioned working conditions or because the materials ordered in time to perform the work are not delivered on time, the delivery period shall be extended insofar as required in Atlas Copco's judgment.

4.4 Unless expressly agreed otherwise, all delivery deadlines and shall therefore not be strict deadlines.

4.5 The product shall be considered delivered with respect to the delivery period when it, if a check at Atlas Copco's company has been agreed on, is ready for shipment, all of this after the buyer has been informed, and without prejudice to Atlas Copco's having to fulfil its assembly and /or installation obligations, if any.

4.6 The delivery period shall likewise be extended by duration of the delay arising

as a result of the buyer's failure to fulfil any obligation ensuing from the agreement or failure to provide the assistance required of it regarding satisfying the terms of the agreement.

4.7 Expect in the event of gross negligence on Atlas Copco's part, the fact that a delivery period has been exceeded shall not entitle the buyer to terminate the agreement in whole or in part. The fact that a delivery period has been exceeded- for whatever reason- shall not entitle the buyer to, without court authorization, perform work (or cause work to be performed) to carry out the agreement.

4.8 A contractual penalty imposed for the delivery period being exceeded must be deemed to replace any right of the buyer to compensation. Such a penalty shall not be owed if the delivery period is exceeded because to in paragraphs 3 or 9 of this Article.

4.9 Subject to the provisions in this Article, Atlas Copco shall be entitled to suspend performance of its obligations vis-à-vis the buyer for as long as the buyer has not fulfilled any or all of its payment or other obligations under any legal relationship existing with Atlas Copco.

This suspension shall apply until the buyer has completely fulfilled its obligations vis-à-vis Atlas Copco. Any agreed delivery period shall be extended on account of the suspension by the duration of suspension.

Article 5 Transfer of risk and title

5.1 Immediately after the item is considered as having been delivered according to Articles 4.3 and 4.9, the buyer shall bear the risk for all direct and indirect damage arising to or because of this item, expect insofar as this is attributable to gross negligence on the part of Atlas Copco.

If, after receiving a notice of default, the buyer still does not take possession of the item, Atlas Copco shall be entitled to charge the buyer

the costs of storing the item. In addition, from the delivery date to date possession is taken, the buyer shall owe statutory interest plus 3% on the entire outstanding amount, as long as payment of the purchase price as agreed on in the purchase agreement has not occurred.

5.2 Subject to the provisions in the pervious paragraph and in Articles 4.3 and 4.9, title to the item shall not be transferred to the buyer until everything owed by the buyer to Atlas Copco on account of deliveries or work, including interest and costs, has been paid to Atlas Copco in full.

5.3 At Atlas Copco's request, the buyer must furnish alternative security for Atlas Copco, if for whatever reason, Atlas Copco's retention of title is extinguished. This alternative security may consist of creating a nonpossessory pledge on all movable or other property referred to in Article 5.1

5.4 If appropriate, Atlas Copco shall be entitled to unimpeded access to the item. The buyer shall fully cooperate with Atlas Copco in order to provide Atlas Copco the opportunity to assert the retention of title included in paragraph 2 by retrieving the item, including any dismantling necessary in that regard.

Article 6 Payment

6.1 Payment shall occur after delivery, within 10 days after the invoice delivery date, unless partial payments on dates prior to delivery have expressly been agreed on. In such a case, payment shall be made after receipt of the invoice, before or on the agreed date. If payment shall be made after receipt of the invoice, before or on the agreed date. If payment is not made on time, the buyer shall be in default being required, and the buyer must pay statutory interest plus 3% on the amount owed for the duration of the default, as well as a legal and other costs related to collection of its claim, with such other costs reasonably being set at 15% of the outstanding amount,

without prejudice to Atlas Copco's right to charge the buyer the costs actually incurred, including any legal costs, if these exceed the amount so calculated. All payments must be made. Without any deduction or set-off, at Atlas Copco's offices or to an account to be designated by Atlas Copco.

6.2 Unless it receives Atlas Copco's express written permission, the buyer may not set off its payment obligation vis-à-vis Atlas Copco against a claim of the buyer against Atlas Copco on any account whatsoever.

6.3 Atlas Copco shall be entitled to demand a pre-payment, cash payment or security for payment from the buyer at any time.

Article 7 Inspection, checking, testing

7.1 The items shall be inspected and tested carefully by Atlas Copco before delivery. If additional inspections, checks or tests have been agreed on, Atlas Copco shall determine when these may be conducted and shall inform the buyer of this. The buyer or a representative designated by the buyer shall be entitled to be present during the inspection, check or test. The inspection, check or test shall be conducted regardless of weather the buyer exercises its aforementioned right. The results shall be provided to the buyer.

7.2 If the inspection, check or test must be performed in whole or in part by one or more persons who are not employed by Atlas Copco, and they do not appear at the aforementioned time, then the inspection, check or test shall be deemed to have taken place to the buyer's satisfaction, unless, within three days after learning of the nonappearance, the buyer states that the inspection, check or test must still take place.

7.3 If and insofar as a check or inspection at Atlas Copco's company has not been agreed on by Atlas Copco, the buyer shall check the items within five days after delivery as referred to in Articles 4.3 and 4.9, unless a longer period has expressly been agreed on.

7.4 If this period has expired without a written and itemized report of justified complaints, the items shall be deemed to have been accepted.

7.5 Subject to Atlas Copco's obligation to fulfil its warranty obligations, acceptance in accordance with the previous paragraphs shall preclude any claim by the previous paragraphs shall preclude any claim by the buyer regarding a breach of performance by Atlas Copco.

7.6 The presence of a defect shall never entitle the buyer to suspend or set off its payment obligations regarding goods delivered or furnished, products, or work and/or services performed.

Article 8 Properties for use, warranties

8.1 The value of properties for use as stated by Atlas Copco with regard to machinery shall be based on Atlas Copco's experience and, as such, shall be as Atlas Copco would expect under the conditions of Atlas Copco's standard tests. These test shall be based on internationally accepted standards.

8.2 It shall be the buyer's responsibly to determine whether the capacity and properties for use of the compressed-air machinery are suitable and legally permissible for the use the buyer envisages. Atlas Copco shall not accept any liability whatsoever in this respect.

8.3 If, upon delivery, the machinery turns out to be incapable of achieving the values (subject to the tolerances stated with these values) referred to under paragraph 1 of this Article, the buyer shall enable Atlas Copco to take such measures within a reasonable period which allow these values to be satisfied. If this does not prove possible, the machinery shall, at Atlas Copco's option, either be replaced by machinery which does satisfy the agreed values or be taken back by Atlas Copco with a refund of that portion of the purchase price which has already been paid, without Atlas Copco otherwise being obliged to pay any compensation.

8.4 Subject to the provision in the previous paragraphs, Atlas

Copco shall not have any other obligation regarding the items delivered by it besides those ensuring from its warranty obligation as described below and/or described in warranty certificate delivered by it with the items, provided the conditions contained therein are observed.

8.5 If, within a warranty period after delivery as referred to in Article 4.3, machinery turns out to exhibit defects as a result of the use of improper materials or defects in workman ship, these items shall, at Atlas Copco's option, be repaired or replaced. Provided:

- a. the buyer or end user has followed Atlas Copco's instructions regarding use, maintenance and operation.
- b. the defect is not the result of incorrect or improper use or incompetent actions performed on the items.
- c. Atlas Copco has been given written notice of the defects by the buyer and end user within five days of the date on which the defects were discovered or reasonably could have been discovered.

8.6 The warranty shall likewise not encompass defects occurring in whole or in part because of:

- a. use of the items in a manner other than the expected normal use.
- b. normal wear and tear.
- c. repairs by third parties, including the buyer.
- d. parts procured by Atlas Copco from third parties, insofar as the third party has not furnished any warranty to Atlas Copco.

8.7 For items located in Egypt, this warranty shall include the costs of materials and labor, insofar as the repairs are made at Atlas Copco's workshop. For items located outside Egypt, this warranty shall only include the costs of materials. If the buyer or end user sends the items at its expense to one of Atlas Copco's branches in Egypt, and the items are sent and received consistent with Atlas Copco's instructions, the warranty shall include the costs of both materials and labor.

8.8 If, when the items are repaired or placed, more than six months of the original

warranty period have lapsed, the warranty for the replaced or repaired parts shall be extended, until six months after delivery of the replaced or repaired parts.

8.9 Unless expressly stated in the agreement, warranties shall not be given for second-hand items.

8.10 If the buyer does not fulfil any obligation or obligations properly or on time, Atlas Copco shall not have any warranty obligation.

Article 9 Liability

9.1 Atlas Copco's liability shall be limited to fulfilment of the warranty obligations described in Article 8 of these Terms and Conditions.

9.2 Expect in the event of gross negligence on Atlas Copco's part, and subject to the provisions in the previous sentence, any liability by Atlas Copco regarding matters such as loss of profits, other indirect damage and damage resulting from liability vis-à-vis third parties, shall excluded. Atlas Copco shall therefore not be liable for:

- a. infringement of patents, licenses or other third party rights resulting from information furnished by or on behalf of the buyer.
- b. damage or loss, whatever the cause, of raw materials, semi-finished products, molds/item plates, tools and other items provided by the buyer.

9.3 If, without being instructed to assemble items, Atlas Copco nevertheless provides help and assistance – of whatever nature – with assembly, this shall occur at the buyer's risk.

9.4 If and only if it is judicially established that, despite the provisions in paragraphs 1 and 2, Atlas Copco is liable for any damage, Atlas Copco's total liability shall be limited to compensating direct damage, up to at most an amount equaling the price (exclusive of Turnover tax) stipulated for such performance and/or delivery. If the agreement is primarily a continuing Performance agreement with a term exceeding one year, the aforementioned amount shall be set at the total of the payments (exclusive of turnover tax) stipulated for one year.

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The total compensation for direct damage, However, shall never exceed one hundred thousand euros (EGP 100,000) per year. For purposes of this Article, "direct damage" shall solely mean:

- a. the reasonable costs the buyer has incurred in order to have Atlas Copco's performance conform to the agreement concluded.
 - b. reasonable costs incurred to avoid or limit damage, insofar as the buyer demonstrates that these costs limited direct damage within the meaning of this Article.
- 9.5 Atlas Copco's total liability for damage on account of death or physical injury or for material damage to goods shall not in any event exceed the amount paid out under Atlas Copco's insurance.
- 9.6 Atlas Copco shall not be liable at any time for indirect damage, including consequential damage, lost savings, loss due to business interruption or any other damage besides that referred to in Articles 9.4 and 9.5
- 9.7 For any right to compensation to arise, the buyer must always report the damage in writing to Atlas Copco as soon as possible after it arises.
- 9.8 A series of related events resulting in damage shall be considered a single event for purposes of application of this Article.
- 9.9 The buyer must indemnify or compensate Atlas Copco with respect to any third-party claims for compensation of damage for which Atlas Copco's liability has been excluded in relation to the buyer under these Terms and Conditions.

Article 10 Force majeure

- 10.1 For purposes of Article 4, "force majeure" shall mean any failure to satisfy the agreement which cannot be attributed to Atlas Copco or the buyer, because it is not due to the fault of Atlas Copco or the buyer, nor the responsibility of Atlas Copco or the buyer by virtue of the law, legal act or generally accepted practices.
- 10.2 In the event of a temporary situation of force majeure, including a situation in which

a product ordered by the buyer is temporarily undeliverable, Atlas Copco shall be entitled to extend the envisaged delivery period under Article 4 by the time during which the temporary situation continues.

- 10.3 In the event of a permanent situation of force majeure, including a situation which is beyond Atlas Copco's or the buyer's control, or which they cannot reasonably control, and which makes it impossible to deliver or furnish products or to perform work and /or services, Atlas Copco or the buyer shall be entitled to terminate the agreement extra judicially. In a force majeure situation, the buyer may not claim any compensation from Atlas Copco for the damage suffered by it.

Article 11 Confidentiality, Intellectual property

- 11.1 All intellectual or industrial property rights and similar rights with regard to goods or products delivered and/or furnished by Atlas Copco to buyer or for work and/or services performed for the buyer shall be held exclusively by Atlas Copco.
- 11.2 With respect to third parties, the buyer must maintain the confidentiality of all drawings, descriptions, specifications, designs, constructions, diagrams, technical documents and other business information as well as know-how in the broadest sense of the word from Atlas Copco of which it has been informed or become aware in any manner.
- 11.3 Unless expressly agreed otherwise in writing, no provision whatsoever in the agreement concluded with the buyer or agreements between Atlas Copco and the buyer ensuring from this shall constitute a full or partial transfer to the buyer of the rights referred to in Article 11.1. The buyer recognizes these rights and shall refrain from any type of direct or indirect infringement of these rights, under pain of forfeiture of a penalty, due and payable in full, of EGP 25,000 for each breach or each week that the breach continues, without prejudice to Atlas Copco's

other rights in this regards, including the right to fulfilment of obligations and/or full compensation.

- 11.4 If the buyer becomes aware that third parties are infringing the rights referred to in Article 11.1, the buyer must immediately inform Atlas Copco of this in writing. Unless it receives written permission from Atlas Copco, the buyer shall not in manner whatsoever itself take legal or other action against such infringement. If Atlas Copco decides to take legal or other action against infringing third parties, the buyer shall, at Atlas Copco's expense, fully cooperate as requested by Atlas Copco.

Article 12 Transfer of rights and obligations

Atlas Copco shall be entitled to transfer to one or more third parties the right to fulfil its obligations and/or to exercise its rights under this agreement. Atlas Copco shall furnish written notice of any such transfer to the buyer.

Article 13 Non-performance, termination of agreement

- 13.1 Atlas Copco shall be entitled to terminate the agreement with the buyer with immediate effect for the future through written notice, without any prior notice of default, or to cease further deliveries or performance of work and/or services, without being obliged to pay any compensation. And without prejudice to its other rights, if:
- a. despite a proper notice of default, the buyer breaches any obligation it has.
 - b. a temporary or permanent suspension of payments is granted to the buyer or it is put into liquidation or declared bankrupt, or the buyer files a petition for application of the debt rescheduling scheme, or the buyer is placed under guardianship or administration.
 - c. an attachment is made against the buyer or its property regarding substantial debts and this attachment is maintained for more than two months.

- d. the buyer ceases or otherwise winds up its business operations in whole or in part, and/or fundamentally changes its business activities or transfers these to a third party without Atlas Copco's prior written permission.

13.2 All claims which Atlas Copco has against the buyer in these situations shall be immediately due and payable in full.

13.3 Atlas Copco shall never owe the buyer any compensation or payment on account of the aforementioned termination of the agreement, without prejudice to Atlas Copco's right to full compensation because of the buyer's breach of its obligations as referred to above and without prejudice to Atlas Copco's other rights.

Article 14 Delay, cancellation

- 14.1 If and insofar as the buyer wishes to suspend taking possession of the item, the buyer shall owe Atlas Copco storage costs for the entire delay period, without prejudice to the buyer's obligation to pay the full purchase price to Atlas Copco in accordance with the provisions in Article 6. The storage costs shall be invoiced to the buyer monthly.
- 14.2 If and insofar as the buyer wishes to cancel taking possession of the item, or at least an item included in the purchase agreement, the buyer shall owe Atlas Copco compensation equaling the costs incurred by Atlas Copco up to the time of cancellation, such costs amounting to at least 30% of the purchase price.
- 14.3 Cancellation must occur by means of a registered letter from the buyer to Atlas Copco's address.

Article 15 Applicable law, disputes

- 15.1 Egyptian law shall solely apply to the agreement and any later agreements.
- 15.2 Subject to the applicability of the paragraph 3 of this Article, all disputes arising in connection with an agreement to which these Delivery Terms and Conditions apply in whole or in part, or in connection with later agreements ensuring

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from such an agreement, shall be settled exclusively by the competent court in Egypt unless Atlas Copco opts to apply to the court designated by law.

- 15.3 Insofar as the disputes described in the previous paragraph fall within the subject-matter jurisdiction of the Sub-District Court under the rules of Egypt civil procedural law, then the District Court, Sub-District Section, may settle the dispute.

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